

court lists these hearings here should the parties wish to withdraw these motions:

- Plaintiff's motion for leave to file a second amended complaint (filed Aug. 25, 2026) and currently scheduled for October 6, 2026
- Defendant Selene Finance LP's demurrer to the first amended complaint (filed Jul. 29, 2026) and currently scheduled for October 6, 2026

15. S-CV-0057262 Barker, Gregory v. Barnes, Mason

Defendants' Demurrer to Complaint

Defendants' request for judicial notice is granted.

Defendants demur to the fourth cause of action alleged in the complaint for intentional interference with expected inheritance (IIEI). Plaintiff opposes this motion.

A party may demur where the pleading does not state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 430.10 (e).) A demurrer tests the legal sufficiency of the pleadings, not the truth of the allegations or the accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleadings are deemed true no matter how improbable they may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) However, the court does not assume the truth of contentions, deductions, or conclusions of facts or law. (*Evans v. City of Berkeley* (2006) 38 Cal.4th 1, 6.) The court may only refer to matters outside the pleading that are subject to judicial notice. (*Rea v. Blue Shield of California* (2014) 226 Cal.App.4th 1209, 1223.)

Defendants contend the fourth cause of action fails because when a plaintiff already has adequate remedy in probate, an IIEI tort claim cannot proceed. (See *Beckwith v. Dahl* (2012), 205 Cal.App.4th 1039, 1052; *Halperin v. Halperin* (2026) 118 Cal.App.5th 193, 200.) In opposition plaintiff argues his remedies in probate are inadequate as in the probate matter he is unable to pursue tort remedies against defendant Barnes.

“[T]he unavailability in probate of tort damages against individual actors does not establish the inadequacy of probate and provides no basis for an IIEI claim to proceed.” (*Halperin, supra*, 118 Cal.App.5th at 203.) “The tort of intentional interference with inheritance did not arise out of a perceived need to punish alleged wrongdoers. The tort developed to protect valid testamentary expectancies and to provide a remedy when the probate process proved inadequate. The proper focus of the tort is on the just distribution of estate assets; when that can be achieved in probate, the need for the tort disappears.” (*Munn v. Briggs* (2010) 185 Cal.App.4th 578, 590 (int. quotation omitted).)

Plaintiff fails to adequately allege the absence of an adequate probate remedy. The demurrer is sustained as to the fourth cause of action for intentional interference with expected inheritance. As plaintiff fails to satisfy his burden of demonstrating the existence of additional factual allegations which could cure the deficiencies, leave to

amend is denied. Defendants shall file an answer to plaintiff's complaint on or before **September 28, 2026**.

16. S-CV-0057323 Rodriguez, Morgan v. FlexCare

Defendant's motion to compel arbitration and motion to stay is continued to **November 10, 2026 at 8:30 a.m. in Department 32**.

17. S-CV-0057953 In Re the Petition of Burke, Tyler John

Status Conference, Petition for Dissolution of a Corporation and Appointment of Receiver

Petitioners Tyler John Burke and Donald N. Rios petition for judicial dissolution of respondent RBM Construction. Respondents have not yet appeared.

It does not appear the petition is yet at issue. While petitioners filed proofs of service showing service of the petition, no summons has been sought or issued. No briefing has been submitted to the court. The court also observes that while the verified petition references two exhibits, no exhibits are attached to the petition. Moreover, this hearing was previously continued from August 4, 2026 when the court directed petitioners' counsel to provide notice to respondents. There is no evidence in the court's file that respondents have notice of this continued hearing.

The appearance of the parties is required on **September 15, 2026 at 8:30 a.m. in Department 32**. Department 32 is located at 10820 Justice Center Drive, Roseville, California 95678.
